



DECISION

Complaint No. : POS/3156/2025/KR

Name and address of the complainant : Mr. Muhammad Ayub Usman,
: R/o. House No. L-570, Sector 41/B,
: Korangi No. 2 ½, Karachi

Name of the Agency Complained against : Town Municipal Corporation (TMC) Korangi /
: KMC, Karachi

Name & Designation of Investigating Officer : Mr. Muhammad Shoaib Ahmed Siddiqui,
: Advisor-in-Charge, R.O Korangi

Vetted by : Mr. Ghulam Abid Shaikh,
: Advisor-K

Subject : **COMPLAINT AGAINST ALLEGED ILLEGAL ALLOTMENT OF CABINS AND RECEIPT OF MONTHLY RENT AND TRANSFER FEE BY TOWN MUNICIPAL CORPORATION, KORANGI.**

COMPLAINT

Mr. Muhammad Ayub Usman filed a complaint stating that the Town Municipal Corporation (TMC) Korangi and the Karachi Metropolitan Corporation (KMC) had developed a hawkers' zone on the service road alongside Government Comprehensive Higher Secondary School, Korangi, and allegedly sold out a cabin for Rs.400,000/-. It was further alleged that the authorities were also receiving a transfer fee of Rs.75,000/- and monthly charges of Rs.9,000/- from each cabin holder.

PROCEEDINGS

2. The TMC Korangi filed a report through its Advocate, stating that *Korangi Food Street* is a public welfare initiative established by the previous administration and the elected council body of TMC Korangi to provide a safe and healthy environment offering quality food at reasonable rates. It was informed that the Food Street is a notified public property reserved for recreational purposes since 2006 and falls under the jurisdiction of TMC Korangi.
3. The report further explained that the project was initiated under the leadership of the then City Nazim, Karachi, Mr. Mustafa Kamal, as part of a broader urban development initiative. Although the Food Street faced instances of illegal encroachment during administrative transitions, such encroachments were reportedly cleared through legal processes. The project was later restored through a public-private partnership and continues to serve as a family-oriented recreational facility for residents of Korangi.
4. It was contended that the allegations raised in the complaint were false, frivolous, and motivated by malice, aimed at disrupting a legitimate and beneficial public project. Moreover, it was stated that an identical matter is currently pending adjudication before the Hon'ble High Court of Sindh under C.P. No.D-1311/2025, and therefore, the office of the Ombudsman lacks jurisdiction in the matter as it is *sub judice* and pertains to contractual and property rights falling within the purview of civil courts.

FINDINGS

5. Examination of the available record and the report submitted by TMC Korangi reveals that the subject matter relates to alleged illegal allotment of cabins and collection of transfer and rental charges from hawkers operating in the *Korangi Food Street*.
6. The report of TMC Korangi indicates that the area in question is a notified public property established for public welfare and recreational use. The allegations regarding sale of cabins and receipt of transfer fee and rent, however, have not been substantiated with documentary evidence by the complainant.
7. It is also observed that the issue raised in the complaint is already pending before the Hon'ble High Court of Sindh under C.P. No.D-1311/2025. In such circumstances, the matter being *sub judice* cannot be simultaneously examined by this office in terms of Section 9(1)(a) of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991, which bars investigation into matters pending before a court of law.

DECISION

8. In view of the above findings, it is held that this office lacks jurisdiction to entertain or proceed further with the complaint, as the matter is already sub-judice before the Hon'ble High Court of Sindh. The complainant, however, may pursue his grievances before the appropriate judicial forum where the matter is under consideration.

Given under my hand and seal of office.



Sd /-

(Muhammad Sohail Rajput)

Sitara-e-Imtiaz. PAS

Ombudsman Sindh

Karachi, dated; 02nd December, 2025